

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section
331 of the Code of Criminal Procedure Act
No. 15 of 1979.

Democratic Socialist Republic of Sri Lanka

Complainant

Court of Appeal Case No:
CA/ HCC/0078/2020

High Court of Negombo
Case No: **16/2005**

Vs

1. Manikka Raja Ashok Kumar
2. Vincent Ratnasinghe Daniel

Accused

AND NOW BETWEEN

Vincent Ratnasinghe Daniel

Accused -Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Pradeep Mahamuthugala instructed by Jaliya Samarasinghe for
the Accused-Appellant

: Shanil Kularatne A.S.G for the Complainant-Respondent

Argued on : 11.05.2026

Decided on : 09.07.2026

Pradeep Hettiarachchi, J

Judgment

1. In this appeal, the 2nd Accused-Appellant (hereinafter referred to as “the Appellant”) challenges the conviction and sentence imposed by the Learned High Court Judge of Negombo on 08.07.2020. In High Court Case No. HC-16/2005, the two accused were indicted on the following counts:
 - a. That on or about 08.06.2012 in Weligampitiya, the 1st and 2nd accused were for possession of 5.496 kg of Heroin without the authority or a license as permitted by the Director in terms of Chapter 5 of the Poisons, Opium and Dangerous Drugs Ordinance, an offence punishable under Section 54A (d) of the said Ordinance.
 - b. At the same time, during the same transaction, the 1st and 2nd accused, by trafficking 5.496 kg of Heroin, committed an offence punishable under Section 54A (b) of the Poisons, Opium and Dangerous Drugs Ordinance (as amended).

2. The 1st Accused remained absent throughout the trial, and accordingly, the trial against him was conducted in absentia. At the conclusion of the trial, the Learned High Court Judge found both accused guilty on the charges contained in the indictment and convicted them accordingly. Consequently, both accused were sentenced to death on each count.
3. It is against the said conviction and sentence that the 2nd Accused-Appellant has preferred the present appeal.
4. The following are the grounds of appeal urged by the Appellant:
 - a. Adoption of previous proceedings is irregular;
 - b. Grave injustice has been caused to the Appellant due to improper evaluation of evidence by the Learned Trial Judge;
 - c. There was no evidence of exclusive possession;
 - d. There was no evidence to prove trafficking; and
 - e. There was no evidence to treat the Appellant as an accomplice.
5. At the trial, three police officers namely PW1, PW2, PW8, and PW10 testified for the prosecution.
6. I shall first consider whether the adoption of the proceedings by the Learned Trial Judge was irregular or erroneous. The Appellant contends that, although the Learned Trial Judge proceeded on the basis of adopting the proceedings recorded before his predecessor in office, there is nothing on record to demonstrate that the parties had consented to such adoption.
7. It is common ground that the question of adoption of proceedings is mainly governed by Section 48 of the Judicature Act, No. 2 of 1978, as amended by the Judicature (Amendment) Act, No. 27 of 1999. Section 48 reads:

“In the case of death, sickness, resignation, removal from office, absence from Sri Lanka, or other disability of any Judge before whom any action, prosecution, proceeding or matter, whether on any inquiry preliminary to committal for trial or

otherwise, has been instituted or is pending, such action, prosecution, proceeding or matter may be continued before the successor of such Judge who shall have power to act on the evidence already recorded by his predecessor, or partly recorded by his predecessor and partly recorded by him or, if he thinks fit, to re-summon the witness and commence the proceedings afresh:

Provided that where any criminal prosecution, proceeding or matter (except on an inquiry preliminary to committal for trial) is continued before the successor of any such judge, the accused may demand that the witnesses be resummoned and reheard.”

8. It must be emphasized that Section 48 does not require a successor Judge to formally record the adoption of the proceedings previously conducted by his predecessor. Accordingly, the omission to make such a formal record does not render the proceedings irregular, nor does it vitiate the judgment, unless it is shown that the omission has occasioned prejudice to the substantial rights of a party or resulted in a failure of justice.
9. It is to be noted that the trial in the High Court had commenced before the High Court Judge N.V. Karunathilake on 06.05.2015, where the evidence-in-chief of PW1 was partly concluded. The remainder of the trial was thereafter proceeded with by the High Court Judge R.A. Ranaraja. On 29.01.2018, at the commencement of the proceedings, the Learned Trial Judge stated that, having adopted the evidence led thus far, he would continue with the trial.

“මේ දක්වා මෙතෙක්වත් ඇති සාක්ෂි මා ඉදිරියේ පිළිගෙන නඩු විභාගය පවත්වා ගෙන යාමට මා තීරණය කරමි.” (vide page at 249 of the Appeal Brief)

10. It is true that there is nothing on record to demonstrate that the parties consented to such adoption. Similarly, there is nothing to indicate that either party raised any objection when the proceedings were so adopted. The Appellant was, throughout the trial, duly represented by an Attorney-at-Law. In those circumstances, it is difficult to infer that the Appellant had any objection to the adoption of the evidence led before the predecessor Judge.

11. Further, had the Appellant been aggrieved by the procedure followed by the Trial Judge in adopting evidence, he could have raised an objection at the appropriate stage or made an application to recall any witness already examined. The absence of any such objection or procedural step is a relevant factor in assessing the Appellant's present contention. More significantly, the Appellant has failed to establish that the Learned Trial Judge's adoption of the evidence recorded before his predecessor, without expressly obtaining the Appellant's consent, resulted in any prejudice to the Appellant's substantial rights or occasioned a failure of justice. In the absence of such prejudice, the alleged irregularity, even if established, cannot constitute a valid ground for setting aside the proceedings or the judgment.
12. At this juncture, it is apposite to refer to Article 138 of the Constitution, which defines the scope and extent of the jurisdiction vested in the Court of Appeal in the exercise of its appellate powers.
13. Article 138(1) reads as follows:

“The Court of Appeal shall have and exercise subject to the provisions of the Constitution or of any law, an appellate jurisdiction for the correction of all errors in fact or in law which shall be committed by the High Court, in the exercise of its appellate or original jurisdiction or by any Court of First Instance, tribunal or other institution and sole and exclusive cognizance, by way of appeal, revision and restitutio in integrum, of all causes, suits, actions, prosecutions, matters and things of which such High Court, Court of First Instance, tribunal or other institution may have taken cognizance: Provided that no judgement, decree or order of any court shall be reversed or varied on account of any error, defect or irregularity, which has not prejudiced the substantial rights of the parties or occasioned a failure of justice.”

14. The language of the proviso to Article 138(1) of the Constitution is clear and unambiguous. It mandates that the Court of Appeal shall not reverse or vary the judgments, decrees, or orders of the original courts on account of any error, defect, or irregularity, unless such error, defect, or irregularity has prejudiced the substantial rights of the parties or occasioned a failure of justice.

15. In this regard, Sections 436 and 456A of the Code of Criminal Procedure Act would also be of much relevance. Section 436 reads:

“Subject to the provisions hereinbefore contained any judgment passed by a court of competent jurisdiction shall not be reversed or altered on appeal or revision on account –

(a) of any error, omission, or irregularity in the complaint, summons, warrant, charge, judgment, summing up, or other proceedings before or during trial or in any inquiry or other proceedings under this Code; or

(b) of the want of any sanction required by section 135, unless such error, omission, irregularity, or want has occasioned a failure of justice.”

16. Section 456A of the Code of Criminal Procedure Act reads as follows:

“The failure to comply with any provision of this Code shall not affect or be deemed to have affected the validity of any complaint, committal or indictment or the admissibility of any evidence unless such failure has occasioned a substantial miscarriage of justice.”

17. The following authorities illustrate the consistent approach of our appellate courts in dealing with cases originating in the trial courts where procedural errors or irregularities are alleged or apparent.

18. In ***Kiri Mahaththaya and Another v. Attorney General [2020] 1 Sri LR 10***, the Supreme Court was called upon to decide whether non-compliance with Section 196 of the Code of Criminal Procedure Act, which mandates the High Court to read and explain the indictment to the accused and ask whether he pleads guilty or not guilty of the offence charged (arraignment of accused), vitiates the conviction. The Supreme Court firmly held that if the conviction is to be vitiated, the Appellant must satisfy the Court that such non-compliance has caused prejudice to the substantial rights of the accused or has occasioned a failure of justice, as stipulated in the proviso to Article 138(1) of the Constitution.

19. In ***Vilma Dissanayake v. Leslie Dharmaratne* [2008] 2 Sri LR 184 at 185**, Justice Sarath N. Silva C.J. emphasized that the re-summoning of witnesses and the recommencement of proceedings *de novo* are exceptional measures and not the ordinary course to be adopted. The general rule is that proceedings may be continued by a successor Judge unless circumstances exist which render such continuation prejudicial to the rights of a party or likely to occasion a failure of justice.

“It is necessary for a succeeding Judge to continue proceedings since there are changes of Judges holding office in a particular Court due to transfers, promotions and the like. It is in these circumstances that Section 48 was amended giving a discretion to a Judge to continue with the proceedings. Hence the exercise of such discretion should not be disturbed unless there are serious issues with regard to the demeanour of any witness recorded by the Judge who previously heard the case.”

20. In ***Krishnakumar v. Attorney General* [2021] 2 Sri LR 454 at 458**, Abayakoon J. stated:

“I find that the plain reading of section 48 of the Judicature Act, as amended by Act No. 27 of 1999 is very much clearer as to the intention of the legislature. The intention has been to provide for the conclusion, as expeditiously as possible, a trial commenced before another judge without causing prejudice to an accused person. The legislature in its wisdom has provided for the trial judge to continue with the trial by acting on the evidence previously recorded by his predecessor, but by the proviso of the section has provided an opportunity for an accused in a criminal prosecution to demand that the witness may be re-summoned and reheard ensuring the right of an accused for a fair trial.”

21. In ***Sunil Jayarathna v. Attorney-General* [2011] 2 Sri. L.R. 92**, it was held that when considering the proviso to Article 138(1) of the Constitution, it is evident that the judgment of the High Court need not be reversed or interfered with on account of any defect, error or irregularity which has not prejudiced the substantial rights of the parties or occasioned a failure of justice.

22. Accordingly, the prevailing legal position emerging from the aforementioned case law and statutory provisions is that a judgment cannot be set aside merely on account of a procedural irregularity. The accused must further establish that the irregularity complained of has resulted in prejudice to his substantial rights or has occasioned a failure of justice. In the absence of such prejudice, appellate intervention is not warranted.
23. For the foregoing reasons, I find no merit in the first ground of appeal advanced by the Appellant.
24. I shall now turn to the remaining grounds, namely, whether there was sufficient evidence to establish the Appellant's exclusive possession of the contraband and whether the prosecution proved the offence of trafficking beyond reasonable doubt.
25. Evidently, the raid was conducted pursuant to information received by PW1 from one of his confidential informants. According to PW1, the informant had informed him that two persons were arriving in possession of narcotic drugs and requested him to proceed to St. Anne's Hotel on Weligampitiya–Negombo Road.
26. The evidence further reveals that, at the time of the arrest, the Appellant had nothing in his possession. It was only the 1st accused who was carrying a bag, from which PW1 claimed to have recovered the heroin. Accordingly, the alleged recovery of the contraband was effected exclusively from the bag carried by the 1st accused and not from the possession of the Appellant.
27. In the indictment, both the 1st and 2nd accused were charged with the joint possession and trafficking of heroin. Whether possession is joint in nature must necessarily be determined in light of the particular facts and circumstances of each case.
28. In the present case, the only evidence relied upon by the prosecution to connect the Appellant to the possession and trafficking of heroin is that he was in the company of the 1st accused at the time of the arrest. However, the evidence further reveals that, although the Appellant was subjected to a body search by the police officers, no heroin or any other incriminating article was found in his possession. Thus, apart from his mere presence with the 1st accused, the prosecution has failed to adduce any direct

evidence establishing that the Appellant exercised possession, control, or dominion over the heroin allegedly recovered from the bag carried by the 1st accused.

29. In a case of this nature, the Court must be satisfied that the accused had conscious and exclusive possession of the dangerous drug in question before a conviction can be sustained. Mere possession, without proof of knowledge and control, is insufficient to establish criminal liability, particularly in respect of a charge of trafficking.
30. As emerged during cross-examination, the Appellant's residence was situated in close proximity to the place of arrest. It is noteworthy that, despite arresting the Appellant on allegations of possession and trafficking of heroin, the police took no steps to search his residence. Had the Appellant in fact been engaged in trafficking narcotic drugs, a search of his residence may reasonably have been expected to yield material relevant to the investigation. The failure to conduct such a search is a circumstance that assumes significance when assessing the strength of the prosecution case against the Appellant.
31. In the instant case, the 1st and 2nd accused were charged with the joint possession and trafficking of heroin and were convicted primarily on the basis that both were present at the location at the time of the raid. However, the issue of paramount importance is whether the Appellant possessed the requisite knowledge that the parcel concealed by the 1st accused contained heroin.
32. Knowledge is an essential ingredient in establishing possession, whether actual, constructive, or joint. Therefore, before the Appellant can be held criminally liable for the possession or trafficking of heroin, the prosecution must establish beyond reasonable doubt that he was aware of the nature of the substance contained in the parcel and exercised some degree of control or dominion over it. Mere presence in the company of the 1st accused, without proof of such knowledge, is insufficient to sustain a conviction for joint possession or trafficking. It is a well-established principle that possession, in the context of narcotic offences, must be conscious as well as exclusive.
33. The word 'conscious' means awareness of a particular fact. It is a state of mind that is deliberate or intended. In the present case, no evidence was adduced to establish that the Appellant was in actual possession of the contraband at the time of his arrest. Nor was there any material placed before the Court to demonstrate the Appellant's state of

mind so as to suggest any knowledge of, or nexus with, the 1st accused's possession of heroin.

34. Accordingly, in the absence of proof of conscious possession or any circumstance indicative of the Appellant's control, participation, or concurrence, the essential link required to sustain the charge against the Appellant is not established.
35. Furthermore, in the absence of direct evidence demonstrating that the Appellant was in exclusive possession of the narcotic substance, possession, if any, must necessarily be established by circumstantial evidence.
36. Mere association with, or proximity to, a person found in possession of a narcotic substance is insufficient, by itself, to establish joint possession. The prosecution must prove, beyond a reasonable doubt, circumstances from which the Court can reasonably infer that the Appellant knowingly participated in the possession of the narcotic drug.
37. In the present case, the only evidence against the Appellant is that he was seen in the company of the 1st accused at the time of the arrest, and that the alleged heroin was recovered from a bag carried by the 1st accused. No evidence was adduced to establish that the Appellant exercised any control or dominion over the bag or its contents, or that he had knowledge that the 1st accused was in possession of heroin. In the absence of such evidence, the Appellant's mere presence in the company of the 1st accused is insufficient to establish either joint possession of, or criminal liability in respect of, the narcotic substance.
38. In *Brock v. State*, 162 Tex.Crim.R. 339, 285 S.W.2d 745 (1956), the Texas Court of Criminal Appeals established a foundational standard for establishing constructive possession of contraband. The court ruled that when contraband (such as illicit drugs) is found in a location where the accused is not in **exclusive possession**, the evidence must show additional "affirmative links" to connect the accused to the contraband. A conviction based solely on circumstantial evidence cannot be sustained if the proof only amounts to a strong suspicion or mere probability, and it must exclude every other reasonable hypothesis except guilt.

39. In **Glenn v. United States, 271 F.2d 880 (1959)**, the Sixth Circuit wrote:

"The mere presence of the accused at the scene of a crime does not, of itself, justify drawing an inference that he participated therein."

40. Lord Wilberforce in **Warner v. Metropolitan Police Commissioner (1968) 52 Criminal Appeal Report 373**, has considered this matter as follows;

"The question, to which an answer is required, and in the end, a jury must answer it, is whether in the circumstances the Accused should be held to have possession of the substance, rather than mere control. In order to decide between these two, the jury should, in my opinion, be invited to consider all the circumstances- to use again the words of Pollock and Wright, possession in the common law, P. 119- the 'modes or events' by which the custody commences and the legal incident in which it is held. By these I mean, relating them to typical situations, that they must consider the manner and circumstances in which the substance, or something which contains it, had been received, what knowledge or means of knowledge or guilty knowledge as to the presence of the substance, or as to the nature of what has been received, the Accused had at the time of receipt or thereafter up to the moment when he is found with it; his legal relation to the substance or package (including his right of access to it). On such matters as these (not exhaustively stated) they must make the decision whether, in addition to physical control, he has, or ought to have imputed to him the intention to possess, or knowledge that he does possess, what is, in fact, a prohibited substance. If he has this intention or knowledge, it is not additionally necessary that he should know the nature of the substances."

41. This proposition was considered by His Lordship Ismail, J in his Judgment on **K. Sumanawathi Perera v. Attorney General 1998 2 SLR 20**, held inter alia that;

"Whether in the circumstances the accused should be held to have possession of the substance, rather than mere control Court should consider all the circumstances - the modes or events by which the custody commences and the legal incident in which it is held."

42. Recently, His Lordship Aluwihare PC J in the case of ***Mohamed Iqbal Mohamed Sadath v. Attorney General, SC Appeal 110/15, (SC Minutes 14.12.2020)***, held:

“Lord Wilberforce went on to state that, on such matters as above, though not exhaustively stated, it must be decided whether, in addition to physical control, he has or ought to have imputed to him, the intention to possess or knowledge that he does possess, what is in fact a prohibited substance. The above reasoning in my view is a rational guideline that should be adopted in deciding as to whether the Accused had the knowledge (the requisite mens rea) that what he possessed is a prohibited substance, even though he may not have known the precise nature of the substance.”

43. In ***R. v. Bland, Criminal LR 1988 41*** at page 42, it was held that:

“...allowing the appeal and quashing the conviction, there was no evidence of assistance, active or passive; the fact that the Appellant and Ratcliff lived together in the same room was not sufficient evidence from which the jury could draw such an inference. There was sufficient evidence from which the jury could have inferred knowledge on the Appellant's part that Ratcliff was drug-dealing, but no more. Assistance, though passive, required more than mere knowledge; for example, it required evidence of encouragement at least, or of some element of control, which was entirely lacking in the case. The case should have been withdrawn from the jury.”

44. At the conclusion of the prosecution case, the Appellant chose to make a dock statement. In his statement, the Appellant stated that, while he was on his way home, the 1st accused had inquired from him about the whereabouts of a particular place, and that it was at that moment that both of them were arrested by the police.

45. The prosecution also led evidence in rebuttal to establish that the Appellant was acquainted with the 1st accused, on the basis that both had previously been prosecuted for the possession of heroin. However, it emerged from the evidence that the Appellant had been acquitted of that charge.

46. The Learned Trial Judge applied the *Lucas* principle against the Appellant and concluded that the rebuttal evidence established that the Appellant had made a false statement in his dock statement. On that basis, the Learned Trial Judge held that the Appellant's falsehood constituted an additional circumstance strengthening the prosecution case in accordance with the *Lucas* principle.

47. In my view, however, such an approach is open to serious doubt. The mere fact that the Appellant was previously prosecuted together with the 1st accused does not necessarily establish that they were acquainted at the time of the present incident, particularly when the Appellant had been acquitted of the earlier charge. Moreover, before the *Lucas* principle can be invoked, the Court must be satisfied that the impugned statement was a deliberate falsehood told out of a consciousness of guilt. A finding of falsity, without more, does not justify the application of the *Lucas* principle, nor can it be treated as substantive evidence of the Appellant's guilt.

48. As Lord Lane CJ held in ***R. v. Lucas (1981) 2 All ER 1008 at 1011***:

“Statements made out of court, for example statements to the police, which are proved or admitted to be false may in certain circumstances amount to corroboration...To be capable of amounting to corroboration the lie told out of court must first of all be deliberate. Secondly it must relate to a material issue. Thirdly the motive for the lie must be a realisation of guilt and a fear of the truth...Fourthly the statement must be clearly shown to be a lie by evidence other than that of the accomplice who is to be corroborated, that is to say by admission or by evidence from an independent witness. As a matter of good sense, it is difficult to see why, subject to the same safeguard, lies proved to have been told in court by a defendant should not equally be capable of providing corroboration.”

49. Hence, in the factual context of the present case, the Learned Trial Judge's reliance on the *Lucas* principle is wholly unjustified and cannot be sustained. The circumstances relied upon by the prosecution did not establish that the Appellant had deliberately told a lie out of a consciousness of guilt. Consequently, the application of the *Lucas* principle in the present case is inconsistent with both its rationale and the well-established principles governing its operation.

50. In light of the foregoing factual and legal analysis, the conclusion reached by the Learned Trial Judge regarding the Appellant's guilt is unsupported by the evidence and cannot be sustained.

51. More importantly, in the absence of any evidence establishing that the Appellant exercised control or dominion over the contraband, or that he did any act indicative of his knowledge of, or concurrence in, the possession of the heroin by the 1st accused, the essential ingredients of joint possession have not been proved beyond reasonable doubt. In those circumstances, it would be unsafe to allow the conviction to stand.

52. For the foregoing reasons, I set aside the conviction and sentence of the Appellant dated 08.07.2020.

53. Accordingly, the appeal is allowed.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal